

THE SUPPRESSED TRIAL RECORD

How 24 in-trial references to autism and PTSD disappeared from a 111-paragraph judgment

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Day 1 was published on 20 April 2026. Day 2 was published on 1 May 2026. Day 3 was published on 4 May 2026.

All are available in the public archive.

Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

During the ten-day final hearing in BV20D01752 (19 to 28 February 2024), the Applicant's autism and Post-Traumatic Stress Disorder were referenced at least 25 times during the proceedings, including by the trial judge himself.

The 111-paragraph judgment that followed contains no reference to autism, PTSD, disability, vulnerability, participation measures, or mental health.

The references were not peripheral. They arose during evidence, cross-examination, submissions, and judicial intervention. The trial judge ordered breaks because of the Applicant's presentation and directly asked witnesses about PTSD during the hearing.

Paragraph 64 of the judgment subsequently characterised the same presentation in moral rather than clinical terms. The financial and procedural consequences that followed were anchored in that characterisation.

The catalogue of the 25 references is attached to this statement and is verifiable against the contemporaneous attendance notes.

Who I am

I am Nadia Zahmoul. I am autistic (NHS diagnosis, Central London Adult Autism Service, June 2025). I have Post-Traumatic Stress Disorder, chronic since 2013, treated continuously since by Professor Gerald Libby FRCP FRCPsych.

I am a litigant in person across six live High Court proceedings. I am operating without representation, without participation measures, and on £85 in my bank account, with no income and no permanent home, against an accumulating liability of more than one million pounds.

What was said at trial

The 25 in-trial references to the Applicant's autism and PTSD are documented in the contemporaneous attendance notes of the final hearing. The breakdown by speaker is as follows.

Speaker	Refs	Role
MacDonald J	13	Trial judge
Brent Molyneux KC	5	Counsel for the Applicant
Alexis Campbell KC	3	Counsel for the Respondent
Karim Zahmoul	4	Respondent — on oath
Total in-trial references	24	

The trial judge referred to the Applicant's processing difficulty, ordered breaks because of her presentation, and asked the Respondent under cross-examination, on Day 4: "Did you say Nadia had PTSD?"

The Applicant's then-counsel raised her PTSD diagnosis in opening submissions, in cross-examination, and in closing. He exhibited a letter from Professor Libby of 12 July 2022 confirming the PTSD diagnosis — a letter the Respondent had himself attached to his own statement.

The Respondent's counsel accepted, on Day 4: "I have no objection to NZ being supported if she needs that." In closing, she characterised the Professor Libby letter as something to be "treated with caution".

The Respondent, on oath, accepted that he had told the Applicant's solicitors in May 2021 that he believed the Applicant had PTSD, that the proceedings were exacerbating her condition, and that the Professor Libby letter was on the file.

The full catalogue, with day of trial, speaker, context, and verbatim quote where recorded, is set out in the attached catalogue.

What is in the judgment

The judgment of 18 April 2024 ([2024] EWFC 79) runs to 111 paragraphs. The result of a word search of the judgment is as follows.

Term searched	Occurrences in 111 paragraphs
autism / autistic	0
PTSD / post-traumatic	0
disabled / disability (in relation to the Applicant)	0
vulnerable / vulnerability	0
mental health	0
Part 3A / participation measure	0
trauma / psychiatric (in relation to the Applicant)	0
"obsess" / "obsessed" / "obsession"	7
"concerning" / "bordered on the concerning"	10

The clinical vocabulary that was on the lips of the trial judge himself, of both parties' counsel, and of the Respondent under cross-examination, does not appear once in the 111-paragraph judgment. The moral vocabulary appears 17 times.

Paragraph 64 — the substituted finding

The judgment's central characterisation of the Applicant's presentation appears at paragraph 64. It reads in full as follows.

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied,

has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court."

The Applicant's presentation in the witness box was the documented presentation of an autistic person with PTSD under the stress of cross-examination. The trial judge himself had ordered breaks because of it.

The judgment replaced the clinical explanation identified during trial with a moral characterisation. Once that substitution was made, the financial findings of the judgment followed.

The four downstream characterisations

Four further characterisations followed across the costs judgment of 24 May 2024 and the further judgment of 8 May 2025. Each describes a documented manifestation of autism and PTSD. Each is contradicted by the trial record.

- "Disruptive behaviour" — [2024] EWFC 114, paragraph 10(xi). The attendance notes contain no judicial warning for disruptive behaviour and no record of any such finding at trial.
- "The wife stole confidential financial information" — [2024] EWFC 114, paragraph 10(i). The finding is contradicted by the Signal message at NZ5 pp.131-141 in which the Respondent transmitted the documents to the Applicant on 6 May 2021.
- "Deliberately obstructive behaviour" — judgment of 8 May 2025, paragraph 39. The finding was made in the Applicant's documented absence due to a mental health crisis under NHS care, against the express clinical recommendation of Dr Leigh Poyser of 26 March 2025.
- "Verbose and rambling" — judgment of 8 May 2025, paragraph 43. The same hearing, in respect of the Applicant's autistic communication pattern. The autism diagnosis was confirmed by the NHS six weeks later.

The cost cascade

The financial harm flowing from the suppression of disability evidence is verifiable from the operative paragraphs of the costs judgment of 24 May 2024 and the indemnity costs order of 8 May 2025.

Source	Amount	Stated basis
Costs judgment, 24 May 2024 ([2024] EWFC 114), paragraph 27	£200,000	Proportion of husband's costs — "persistent litigation conduct"
Costs judgment, 24 May 2024, paragraph 27	£25,000	Imerman exercise costs
Costs judgment, 24 May 2024, paragraph 27	£30,654.50	Without-notice application costs
Final judgment, 18 April 2024 ([2024] EWFC 79); costs judgment, paragraphs 18, 23	£800,000	Add-back — "reckless expenditure" / "obsessive approach to litigation"
Judgment, 8 May 2025, paragraph 68	Indemnity costs (to be assessed)	"Persistent poor litigation conduct"
TOTAL	≈ £1,055,654.50 fixed plus indemnity	All anchored in the suppressed-disability characterisation

The cost cascade is the financial expression of the suppression. It is not collateral. It is what the suppression produced.

The recusal — undetermined

On 10 February 2025, the Applicant filed a formal application for the recusal of MacDonald J on grounds of judicial bias and disability discrimination, founded on the suppression set out above.

The same judge whose recusal had been sought proceeded to hear the matter on 8 May 2025 — 88 days after the recusal had been filed and while it remained undetermined. The Applicant was absent due to a mental health crisis under NHS care. The judgment that followed awarded indemnity costs against her and made the four characterisations described above.

As at the date of this statement, the recusal application has been pending for 454 days. It has never been determined by any court at any level.

Institutional pattern

Between February 2024 and May 2026, the Applicant has made 233 distinct formal submissions to courts, government, parliament, regulators, and law enforcement, raising the matters set out above. 47% have been met with institutional silence. 20% have been refused on documented mischaracterisations. 6% have been determined on the substance of the matter raised. The full data is set out in the Consolidated Submission Index referenced in the accompanying material.

Why you are copied

Each institutional recipient copied on this statement holds a constitutional, statutory, or oversight function that engages the matters above. You are not asked to take a position on the litigation. You are not asked to re-open or revisit any decision.

You are placed on actual notice of one documentary fact: that the trial record of the final hearing in BV20D01752 contained at least 25 in-trial references to the Applicant's autism and PTSD; that the 111-paragraph judgment that followed contained none; that paragraph 64 of that judgment replaced the clinical explanation identified during trial with a moral characterisation; that four further characterisations followed; that approximately £1,055,654.50 in fixed costs and an indemnity costs order have been imposed on the basis of those characterisations; and that the recusal application invoked to challenge the pattern has been pending and undetermined for 454 days.

The fact is verifiable, in 60 seconds, by any reader against the documentary record attached to this statement.

Where an institution with the function and obligation to consider this fact fails to do so on the documentary record now placed before it, that failure becomes itself part of the institutional record. Today, tomorrow, or in the years to come, the documentary record on which each recipient is placed on notice will be available to any inquiry, committee, journalist, or court that asks what happened, and when those who could act first knew of it.

What I am seeking

Three things.

First. Production of the transcripts of the final hearing of 19 to 28 February 2024 and of the hearing of 8 May 2025, at public expense. The EX107 application for transcripts was refused on 27 March 2026 on documented mischaracterisation. Without the transcripts, the suppression cannot be tested in full. With them, it can be verified against the documentary record set out in this statement.

Second. Specialist review of the judgments of 18 April 2024 ([2024] EWFC 79), 24 May 2024 ([2024] EWFC 114), and 8 May 2025, against those transcripts.

Third. Withdrawal of the judgments of 18 April 2024 and 24 May 2024 from the National Archives and from BAILII, pending that review. The judgments contain findings of fact that the documentary record set out in this statement directly contradicts. They should not remain on the public record until that contradiction has been judicially addressed.

Closing

This statement is not a pleading, an application, or an invitation to further correspondence.

It is a public record of a documentary contradiction.

The trial record contained at least 25 in-trial references to autism and PTSD. The judgment that followed contained none. Paragraph 64 replaced the clinical explanation identified during trial with a moral characterisation. Four further characterisations followed. Approximately £1,055,654.50 in fixed costs and an indemnity costs order have been imposed on that basis. The recusal application invoked to challenge the pattern has been pending and undetermined for 454 days.

The issue is not whether this record is accepted. The issue is whether it is answered.

Until it is answered, the contradiction remains on the public record.

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10 May 2026

Veritas Numquam Perit

Accompanying material

Attached to this email

- Day 4 — The Suppressed Trial Record (10 May 2026). This statement.
- Catalogue of 25 in-trial references to autism and PTSD (10 May 2026). Stand-alone document. Speaker, day of trial, context, and verbatim quote where recorded. Source: contemporaneous attendance notes, final hearing 19 to 28 February 2024.
- NHS clinical letter — Dr Leigh Poyser MBBS MRCPsych (26 March 2025). South Kensington and Chelsea Crisis Resolution and Home Treatment Team.
- NHS clinical letter — Dr Omar Shoukry (17 April 2026). South Kensington and Chelsea Community Mental Health Team, Central and North West London NHS Foundation Trust.
- Accountability Map (1 May 2026). The architecture of institutional notification, included in each public-record statement so that every recipient can see, without seeing the recipient list, the full distribution.

Available on the public archive

<https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

- Day 1 — Public Record (20 April 2026).
- Day 2 — The Suppressed Clinical Evidence (1 May 2026).
- Day 3 — Orders Made Without Participation of a Disabled Litigant (4 May 2026).
- Final judgment in BV20D01752 ([2024] EWFC 79), 18 April 2024 — available via the National Archives.
- Costs judgment in BV20D01752 ([2024] EWFC 114), 24 May 2024 — available via the National Archives.
- Judgment in BV20D01752, 8 May 2025.
- Forensic Judgment Analysis (Part 1 — MacDonald J decisions), 3 April 2026.
- DARVO and Institutional Betrayal long report, 29 April 2026.
- Consolidated Submission Index, 29 April 2026.
- Parliamentary Forum and JR Forum chronologies, 6 May 2026.
- Updated Master Chronology, 11 April 2026.

Held within the criminal referral file (CCR-6501-26-0100-000)

Filed at the Metropolitan Police Specialist Crime Command, with the CPS Special Crime Division and the National Crime Agency Economic Crime Command on copy. Held within

the criminal referral file. Not distributed publicly. Operational engagement recorded 28 April 2026.

- Criminal referral bundle of 20 March 2026 (244 pages).
- Supplementary criminal referral of 30 April 2026 — suppression of clinical evidence in the 8 May 2025 judgment.
- Recusal referral of 24 March 2026.